

RESOLUTION NO. _____

ENTITLED: “A RESOLUTION AUTHORIZING THE MAYOR TO EXECUTE A MEMORANDUM OF UNDERSTANDING WITH PARTICIPATING COUNTIES, CITIES AND TOWNS, REGARDING THE ALLOCATION OF IMPACT ASSISTANCE FUNDS ASSOCIATED WITH THE CHUGWATER ENERGY PROJECT APPLICATION BEFORE THE INDUSTRIAL SITING COUNCIL.”

WHEREAS, on or about September 3, 2025, Chugwater Energy, which consists of wholly owned indirect subsidiaries of NextEra Energy Resource, LLC, submitted to the Wyoming Department of Environmental Quality (DEQ), Industrial Siting Division (ISD), a permit application in accordance with Wyoming Industrial Development Information and Siting Act (“the Act”) to construct and operate the Chugwater Energy Project (hereinafter referred to as “Project”);

WHEREAS, Chugwater Energy plans to construct and operate the Project on private and state leased lands in Platte County, Wyoming. The Project site is located east of the Town of Chugwater and Interstate 25 and spans approximately 49,500 acres. The Project anticipates the generation of approximately 300 megawatts of wind energy, 150 megawatts of solar energy, and includes a 150 megawatt 4-hour duration battery energy storage system;

WHEREAS, a jurisdictional meeting was held on March 25, 2025, during which ISD staff determined the Project is subject to their jurisdiction based on the estimated construction cost, and Platte, Goshen, and Laramie County were defined as the study area;

WHEREAS, Chugwater Energy proposes a 20-month construction period beginning in the second quarter of 2026. Chugwater Energy estimates a twenty (20) month average temporary workforce of two hundred fifty-three (253) workers with a peak of four hundred fifty (450) workers in July 2027;

WHEREAS, the total estimated construction cost for the Project is nine hundred seventy-seven million seven hundred fifty thousand dollars (\$977,750,000.00), including materials and labor;

WHEREAS, W.S. 35-12-109(xiii) requires that Chugwater Energy provide in its Application “[a]n evaluation of potential impacts together with any plans and proposals for alleviating social and economic impacts upon local governments or special districts and alleviating environmental impacts which may result from the proposed facility[;]”

WHEREAS, the evaluation of potential social and economic impacts identifies temporary increases in population, demand for services, and other community effects that may result in additional costs to local governments within the study area;

WHEREAS, recognizing these potential impacts, the Act and associated DEQ rules provide a process for the allocation of “impact assistance funds” to affected local governments to offset such costs;

WHEREAS, Section 12 of DEQ’s Industrial Development Information and Siting Rules and Regulations, provides that as part of the permit application process, the affected counties, cities and towns in the area primarily affected can agree to an amount and schedule for the distribution of impact payment funds and submit their agreement to the Division for submission to the Council for its consideration;

WHEREAS, the local governments that will be primarily affected by this project desire to enter into an agreement to determine the amounts and schedule for payment distribution of impact assistance funds for the Project; and

WHEREAS, the counties, cities, and towns affected by the project have prepared a Memorandum of Understanding (MOU) regarding funding amounts and schedule for impact payment distributions, which must be finalized and executed by the parties before October 31, 2025.

NOW, THEREFORE, BE IT RESOLVED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING, that the Mayor is hereby authorized and directed to execute, on behalf of the City, a Memorandum of Understanding with the participating counties, cities, and towns affected by the Chugwater Energy Project, regarding the allocation and distribution of impact assistance funds in accordance with the Industrial Development Information and Siting Act

PRESENTED, READ AND ADOPTED this _____ day of _____, 2025.

Patrick Collins, Mayor

(SEAL)

ATTEST:

Kylie Soden, City Clerk